TWENTY-THIRD AMENDMENT
DISTRICT OF COLUMBIA ELECTORS

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Amdt23.1 Overview of Twenty-Third Amendment, District of Columbia Electors

Twenty-Third Amendment

Section 1:

> *The District constituting the seat of Government of the United States shall appoint in such manner as the Congress may direct:*
>
> *A number of electors of President and Vice President equal to the whole number of Senators and Representatives in Congress to which the District would be entitled if it were a State, but in no event more than the least populous State; they shall be in addition to those appointed by the States, but they shall be considered, for the purposes of the election of President and Vice President, to be electors appointed by a State; and they shall meet in the District and perform such duties as provided by the twelfth article of amendment.*

Section 2:

> *The Congress shall have power to enforce this article by appropriate legislation.*

House Report No. 1698 discussed the Twenty-Third Amendment, stating that it would:

> provide the citizens of the District of Columbia with appropriate rights of voting in national elections for President and Vice President of the United States. It would permit District citizens to elect Presidential electors who would be in addition to the electors from the States and who would participate in electing the President and Vice President.
>
> [This] . . . amendment would change the Constitution only to the minimum extent necessary to give the District appropriate participation in national elections. It would not make the District of Columbia a State. It would not give the District of Columbia any other attributes of a State or change the constitutional powers of the Congress to legislate with respect to the District of Columbia and to prescribe its form of government. . . . It would, however, perpetuate recognition of the unique status of the District as the seat of Federal Government under the exclusive legislative control of Congress.[1]

[1] H.R. REP. NO. 1698, 86th Cong., 2d Sess. 1, 2 (1960).